

SENATE BILL 344

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 49;
Title 50 and Title 71, relative to safety training.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 3, is amended by adding the following as a new section:

(a) Each LEA and public charter school shall require at least one (1) full-time employee at each school under its jurisdiction to annually receive training in seizure safety and first aid to assist students and staff in the event of an emergency.

(b) The training required for public and nonpublic school personnel who volunteer, pursuant to § 49-50-1602(g), to assist in the administration of anti-seizure medications to a student in an emergency situation, satisfies the training required in subsection (a) if it also includes training in seizure safety and first aid.

(c)

(1) An LEA or public charter school is not liable for any personal injury that results from an act or omission of an employee who is trained in seizure safety and first aid for purposes of this section, if the employee's act or omission does not amount to willful or wanton misconduct or gross negligence.

(2) An employee of an LEA or public charter school who is trained in seizure safety and first aid for purposes of this section is not liable for any personal injury that results from an act or omission of the employee, if the act or omission does not amount to willful or wanton misconduct or gross negligence.

(d) For purposes of this section, "employee" does not include a school nurse who is employed or under contract with the LEA or public charter school.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.